

26CHCV01011 26CHCV01011

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Case Number: 26CHCV01011 Hearing Date: September 14, 2026 Dept: F47

Dept. F47

Date: 9/14/26

Case #26CHCV01011

MOTION TO
COMPEL ARBITRATION

Motion filed on 5/1/26.

MOVING PARTY: Defendant FCA US, LLC

RESPONDING PARTY: Plaintiff Esmeralda Sepulveda and Jose
Gonzalez Luna

NOTICE: ok

RELIEF REQUESTED: An order compelling arbitration
of this controversy and staying this action.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Jose Gonzalez Luna's (Luna)
lease of a 2024 Jeep Wrangler (the Vehicle) on or about 1/13/24. (See Complaint ¶16; Dhillon Decl.,
Ex.A). Also on 1/13/24, Defendant FCA

US, LLC (Defendant) gave Luna a written warranty regarding the Vehicle. (Complaint ¶16). Plaintiffs Jose Gonzalez Luna and Esmeralda

Sepulveda* (collectively, Plaintiffs) contend defects and nonconformities to warranty in the Vehicle manifested themselves within the warranty period. (Id. ¶17). Additionally, Plaintiffs contend that they delivered the Vehicle to an authorized Defendant repair facility for repair and Defendant was unable to conform the Vehicle to the applicable express warranty after a reasonable number of repair attempts and that Defendant failed to promptly replace the Vehicle or make restitution in accordance with the Song-Beverly Act. (Id. ¶¶18-22).

On 3/11/26, Plaintiffs filed this action against Defendant for: (1) Violation of Song-Beverly Act – Breach of Express Warranty and (2) Violation of Song-Beverly Act – Breach of Implied Warranty. On 4/23/26, Defendant requested that Plaintiffs submit their claims to arbitration pursuant to the Agreement to Arbitrate signed by Luna. (Dhillon Decl., Ex.B, C). Plaintiffs did not respond. (Dhillon Decl. ¶5). *Plaintiff Esmeralda Sepulveda's standing to bring the claims in the complaint is unclear as Luna was the sole lessee under the lease agreement. (Dhillon Decl., Ex.A).

On 4/27/26, Defendant answered the complaint.

On 5/1/26, Defendant filed and served the instant motion seeking an order compelling arbitration of this controversy and staying this action. Plaintiffs have opposed the motion and Defendant has filed a reply to the opposition.

ANALYSIS

Plaintiffs' evidentiary objections, numbers 1-7, are overruled.

California and federal law favor enforcement of valid arbitration agreements. See Sanchez (2015) 61 C4th 899; Armendariz (2000) 24 C4th 83; AT&T Mobility, LLC (2011) 563 U.S. 333, 338; AT&T Technologies, Inc. (1986) 475 U.S. 643, 649-650; CCP 1281, CCP 1281.2; 9 U.S.C. §2.

Here, during the leasing of the Vehicle, Luna was

presented with and signed a separate Agreement to Arbitrate which informed Luna that any party, including Defendant or Luna, could elect to have any claims related to the Vehicle decided by arbitration.

(Dhillon Decl., Ex.B).

Plaintiffs' claims relate to the Vehicle; therefore, they are subject to the arbitration agreement. Despite Defendant's request that Plaintiffs arbitrate the disputes in this action pursuant to the arbitration agreement, Plaintiffs have not agreed to do so.

The party opposing arbitration has the burden of establishing that the arbitration agreement is unenforceable, or to establish some defense to the enforcement of the agreement. Crippen (2004) 124 CA4th 1159, 1165. Plaintiffs have failed to meet their burden.

Plaintiffs' argument that Defendant has failed to provide competent evidence that an arbitration agreement that covers Plaintiffs' claims exists is without merit. With regard to motions/petitions to compel arbitration, normal authentication procedures are not required. See Condee (2001) 88 CA4th 215, 218-219. Once Defendant alleged that agreement to arbitrate existed, the burden shifted to Plaintiffs to prove otherwise. Id.

Defendant submitted the standalone "Agreement to Arbitrate" which Luna signed. (Dhillon Decl., Ex.B). The Agreement to Arbitrate provides that both parties agreed that they would resolve any dispute through a neutral, binding arbitration process, not by a court action. Id.

The Dhillon and Portillo declarations properly authenticate the Agreement to Arbitrate.

A document may be authenticated by a witness who is familiar with the record-keeping system used to generate it.

See Evidence Code 1414; People v. Goldsmith (2014) 59 C4th 258, 266–268. Xinia Portillo identifies

her role as custodian of records, the source of the documents (Defendant's business records), reviews the documents, and explains how they were obtained in the regular course of business. Gonzalez

(2026) 831 F.Supp.3d 871, 877-878. Plaintiffs

have not submitted any evidence indicating that Luna did not receive the Agreement to Arbitrate or that he did not sign it.

Any objection based on hearsay fails as the Agreement to Arbitrate falls within the business-records exception and is independently admissible as an operative contractual document. The document is offered for the fact that the agreement exists, not for the truth of its contents. As noted above, Plaintiffs offer no contrary evidence and Luna does not deny signing the Agreement to Arbitrate.

Contrary to Plaintiffs' assertion the Agreement to Arbitrate is not unconscionable.

In order for an agreement to be unenforceable based on grounds of unconscionability, the agreement must be both procedurally and substantively unconscionable. Sanchez (2015) 61 C4th 899, 910. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power and substantive unconscionability focuses on overly harsh or one-sided results. Id.; Roman (2009) 172 CA4th 1462, 1479; Pinnacle Museum Tower Association (2012) 55 C4th 223; Armendariz (2000) 24 C4th 83, 114, 117; Baltazar (2016) 62 C4th 1237, 1248.

Here, there was no surprise as the Agreement to Arbitrate was a clearly designated, separate agreement that was signed by lessee, Luna. (Dhillon Decl., Ex.A, B). Additionally, the arbitration agreement contained an opt-out provision that allowed Luna 30-days to opt-out of the agreement after signing. (Dhillon Decl., Ex.B). As such, it is not an unconscionable contract of adhesion.

The Agreement to Arbitrate is not substantively unconscionable. The terms of the agreement state that both parties agree to arbitrate their claims, Defendant will bear the costs of the arbitration, elects the American Arbitration Association under its Consumer Arbitration Rules as the arbitration forum, and indicates that the arbitration would take place in the County of Luna's residence. (Dhillon Decl., Ex.B).

Plaintiffs' argument that the Agreement to Arbitrate is void due to lack of consideration also fails.

Plaintiff received the express written warranty issued by Defendant for the Vehicle and now seeks to enforce that warranty. Plaintiffs argue that Defendant made "affirmations, promises, and descriptions of the goods sufficient to create an express warranty through advertisement of the warranties to the general public." However, the same express warranties Plaintiff cites contain the arbitration provision which they now seek to avoid. Plaintiffs cannot pick and choose which terms of the warranty they seek to enforce. Plaintiffs also incorrectly argue that Defendant had already provided the express warranty before Luna leased the Vehicle. Contrary to Plaintiffs' assertion, there is no evidence that Defendant provided the express written warranty before the lease of the vehicle. Additionally, mutual promises to arbitrate also constitute adequate consideration for an arbitration agreement. See Garner (2020) 52 CA5th 619, 625; Baker (2008) 159 CA4th 884, 895. Therefore, even if Defendant had not offered a warranty contract as consideration for Luna's Agreement to Arbitrate, the subject agreement would be supported by consideration based on the parties' mutual obligation to arbitrate their disputes. Further, under California law, there is a presumption that written agreements are supported by adequate consideration. Civil Code 1614-1615. Plaintiffs have presented no evidence to rebut this presumption.

Finally, Plaintiffs' argument that Luna did not enter into a direct Agreement to Arbitrate with Defendant lacks merit. Defendant has provided evidence of a stand alone Agreement to Arbitrate which provides that Defendant and Luna agree to arbitrate their disputes concerning the Vehicle. (Dhillon Decl., Ex.B). If Plaintiffs contend that Agreement to Arbitrate is not enforceable because Defendant did not sign it, the same would be true for the warranty itself which is the basis for Plaintiffs' claims.

CONCLUSION

The motion is granted.

This action is stayed pending the conclusion of the arbitration. CCP 1281.4.